Meridian & Rao Legal Associates, Hyderabad
Internal Case File — Privileged & Confidential

Lakshmi Devi vs. Ramesh Naidu

Original Suit No. 245/2023 — Declaration of Title and Permanent Injunction

Illustrative / synthetic case file created for training and demonstration purposes (e.g., testing retrieval-augmented generation systems). All names, dates, case numbers, and facts are fictional and do not correspond to any real person, entity, or proceeding.

1. Case Overview

Case No.	O.S. 245/2023
Court	City Civil Court, Hyderabad
Plaintiff	Mrs. Lakshmi Devi, resident of Malakpet, Hyderabad
Defendant	Mr. Ramesh Naidu, resident of Dilsukhnagar, Hyderabad
Suit Property	Plot bearing Survey No. 118/2A, admeasuring 500 sq. yards, situated at Nagole village, Ranga Reddy District
Nature of Suit	Declaration of title, recovery of possession (in part), and permanent injunction restraining alienation
Firm's Client	Plaintiff (Mrs. Lakshmi Devi)
Handling Advocate	Adv. Srinivas Reddy, Partner

2. Brief Facts

The plaintiff claims ownership of the suit property by virtue of a registered sale deed dated 9 June 1998 (Document No. 2214/1998, Sub-Registrar Office, Saroornagar), executed in her favor by the original owner, and has been in continuous possession and enjoyment since that date, with revenue records (pattadar passbook and mutation extracts) standing in her name.

The defendant claims title over a portion of the same survey number (approximately 150 sq. yards) on the strength of a sale deed dated 3 August 2021, allegedly executed by a person claiming to be the legal heir of the original owner. The plaintiff disputes the defendant's vendor's title, contending that the entire original holding had already been conveyed to her in 1998 and that no residual interest remained capable of being transferred in 2021. The defendant commenced construction of a compound wall encroaching on the disputed portion in August 2023, prompting the plaintiff to seek urgent injunctive relief.

3. Chronology of Proceedings

Date	Event	Notes / Outcome
9 Jun 1998	Registered sale deed executed in favor of plaintiff	Document No. 2214/1998; covers entire Survey No. 118/2A
3 Aug 2021	Defendant's sale deed executed	Covers approx. 150 sq. yards of the same survey number
14 Aug 2023	Defendant commences compound wall construction	Triggers dispute and urgent legal notice from plaintiff
22 Aug 2023	Suit filed with application for temporary injunction	Ad-interim injunction granted restraining further construction
5 Sep 2023	Defendant's counter-affidavit filed	Disputes plaintiff's title and seeks vacation of interim injunction

19 Oct 2023	Temporary injunction confirmed after hearing	Status quo on disputed 150 sq. yards to be maintained pending trial
30 Nov 2023	Written statement filed by defendant	Traces title through alleged legal heir vendor
15 Jan 2024	Issues framed	Six issues framed, including validity of defendant's vendor's title
8 Apr 2024	Court appoints Survey Commissioner	To demarcate boundaries and verify overlap between the two sale deeds
26 Aug 2024	Survey Commissioner's report filed	Confirms disputed 150 sq. yards falls entirely within plaintiff's 1998 deed boundaries
11 Feb 2025	Defendant files objections to Survey Commissioner's report	Objections currently pending consideration

4. Documents on Record

Exhibit No.	Description	Relevance
Ex. A1	Registered sale deed dated 9 Jun 1998 (Doc No. 2214/1998)	Root of plaintiff's title over the entire survey number
Ex. A2	Pattadar passbook and mutation extracts in plaintiff's name	Corroborates continuous possession and revenue recognition
Ex. A3	Property tax receipts, 1999–2023	Evidence of continuous possession and payment of dues by plaintiff
Ex. B1	Defendant's sale deed dated 3 Aug 2021	Basis of defendant's claimed title; validity disputed
Ex. C1	Survey Commissioner's report dated 26 Aug 2024, with sketch map	Key technical evidence on boundary overlap

5. Key Legal Issues

- Whether the plaintiff has valid, subsisting title to the entire extent covered by the 1998 sale deed, including the disputed 150 sq. yards
- Whether the defendant's vendor held any residual transferable interest in the suit property as of August 2021
- Whether the plaintiff is entitled to a permanent injunction restraining the defendant from interfering with or constructing upon the disputed portion
- Evidentiary weight to be accorded to the Survey Commissioner's report in the face of the defendant's pending objections

6. Current Status

The Survey Commissioner's report has been filed and supports the plaintiff's case on the boundary overlap. The defendant's objections to the report are pending consideration; trial evidence has not yet commenced pending disposal of these objections.

7. Next Steps

- Next hearing: 30 April 2025 — arguments on defendant's objections to Survey Commissioner's report
- Prepare written submissions supporting the accuracy and methodology of the survey report
- If objections are overruled, proceed to list matter for plaintiff's evidence
- Continue monitoring compliance with the standing status quo order on the disputed portion

8. Internal Notes (Privileged & Confidential)

Client has been advised that the Survey Commissioner's report significantly strengthens her position; however, she should be counselled on the likely timeline for final disposal, given the defendant's pending objections and possibility of further appeal. No settlement discussions have taken place to date.

9. Relevant Legal Provisions

- Section 34, Specific Relief Act, 1963 — Discretion to declare title where the plaintiff's right is denied
- Section 38, Specific Relief Act, 1963 — Perpetual injunction to prevent breach of an obligation
- Order XXVI, Rule 9, Code of Civil Procedure, 1908 — Commission for local investigation (basis for appointment of Survey Commissioner)
- Section 17, Registration Act, 1908 — Mandatory registration of instruments transferring immovable property valued above the statutory threshold

10. Precedents Relied Upon

The following categories of precedent are being relied upon; specific citations to be finalized by the handling advocate ahead of final arguments:

- Authorities on the evidentiary value of a Court-appointed Survey Commissioner's report and the limited grounds on which such a report may be discarded
- Authorities on the principle that a vendor cannot convey better title than they themselves possess (nemo dat quod non habet), relevant to the defendant's 2021 sale deed
- Authorities on long, continuous, and open possession as corroborative evidence of title in property disputes

11. Risk Assessment

The plaintiff's position is considerably strengthened by the Survey Commissioner's report, which independently confirms the boundary overlap in her favor. The principal risk lies in the defendant's pending objections potentially delaying final adjudication, and in the possibility that the defendant may seek to implead his vendor or raise a fresh challenge to the chain of title underlying Ex. A1, though no such application has been filed to date.

12. Witness List

Witness	Role	Status
PW-1 — Mrs. Lakshmi Devi	Plaintiff; testifies to purchase, possession, and payment of dues	Not yet examined; awaiting disposal of objections
PW-2 (anticipated) — Neighboring Property Owner	To corroborate long possession by plaintiff	Not yet examined
Court Witness — Survey Commissioner	Author of boundary demarcation report (Ex. C1)	Report filed; examination to follow disposal of objections
DW-1 (anticipated) — Mr. Ramesh Naidu	Defendant; to testify on his vendor's claimed title	Not yet examined

13. Correspondence Log

Date	Correspondence	Summary
16 Aug 2023	Legal notice to defendant	Demanded halt to construction and clarification of title claim

28 Mar 2024	Letter to Survey Commissioner's office	Requested early scheduling of site visit given ongoing status quo order
2 Sep 2024	Email from client	Confirmed satisfaction with Survey Commissioner's findings and instructed firm to oppose defendant's objections

End of document. Internal reference: MER-CIV-2023-245 (synthetic training corpus).